

JUDGE STEIN

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK

10 CIV 5761

WEI GAN,

Plaintiff,

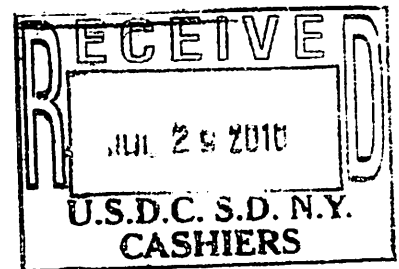
-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
DANNY ZHANG, POLICE OFFICER CASSIDY
VALITUTTO, and DOES 1-10,

Defendants.

Index No. _____

**COMPLAINT AND
JURY DEMAND**



Plaintiff Wei Gan, by his attorney, John M. Lambros, respectfully alleges as follows:

NATURE OF THE ACTION

1. This action arises from the deprivation of plaintiff Wei Gan's rights guaranteed to him under the First, Fourth, and Fourteenth Amendments of the United States Constitution, 42 U.S.C. §§ 1983 and 1988, the statutory and common laws of New York State and the New York State Constitution.

JURISDICTION

2. This Court has jurisdiction over this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367.

3. Venue is proper under 28 U.S.C. § 1391(b) because the allegations contained in this Complaint arose in New York County, New York.

PARTIES

4. Plaintiff Wei Gan resides in New York, New York.

5. Defendant the City of New York is a municipality existing under the laws of New York State.

6. Defendant the New York City Police Department is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as allowed by the State of New York.

7. Defendant Police Officer Danny Zhang is employed as a police officer by the City of New York and is stationed at the 5th Precinct located at 19 Elizabeth Street, New York, NY 10013.

8. Defendant Police Officer Cassidy Valitutto is employed as a police officer by the City of New York and is stationed at the 5th Precinct located at 19 Elizabeth Street, New York, NY 10013.

9. Defendants Does 1 through 10 are yet-to-be identified individuals with the New York City Police Department and are sued in their individual, official, and supervisory capacities.

10. At all times hereinafter mentioned, the individual defendants, either personally or through their agents, were acting within the scope of their employment and under color of state law and/or in compliance with and in furtherance of the official rules, regulations, laws, customs, usages and/or practices of the City of New York and the New York City Police Department (“NYPD”). All of the acts of NYPD officers complained of herein were committed by one or more of the aforementioned defendants. Plaintiff is presently without sufficient knowledge or information to particularize the specific acts of individual defendants.

FACTS

11. On Sunday, February 21, 2010, Mr. Gan was on the sidewalk near the corner of Worth and Mott Streets in New York. He was on his way to a restaurant with his roommate during the Chinese New Year Parade. Because of the parade, part of the sidewalk was blocked with police tape. Other people were lifting the tape and continuing down the sidewalk, so Mr. Gan began to do the same.

12. As Mr. Gan was lifting the police tape, but before he actually moved past it, police officer Danny Zhang grabbed Mr. Gan by the collar, pushed him, and said, "What do you think you're doing?" Mr. Gan instinctively responded, "Get your hands off me." Officer Zhang then tackled Mr. Gan to the ground, saying, "You think you're a big tough guy huh? We'll see how you do in jail." Officer Zhang then handcuffed Mr. Gan and pulled him up by his wrists. Once Mr. Gan was standing, Officer Zhang slammed his face against a wall.

13. After tackling Mr. Gan, cuffing him, and slamming his face up against a wall, Officer Zhang noticed that his finger was bleeding and became irate. He showed Mr. Gan his hand and said, "Look what you did to me. Now you're gonna get it. You're looking at a felony – assaulting a police officer."

14. Mr. Gan responded that he could not caused Officer Zhang to hurt his finger because Mr. Gan did not have anything sharp and did not have the use of his hands because he was being handcuffed. Officer Zhang said, "It doesn't matter, you hurt my finger. Are you going to resist arrest now? Stop resisting arrest, a**hole. We will f**king pepper spray you if you keep resisting." Mr. Gan was not resisting arrest; in fact,

he was trying to move his head closer to the wall to relieve the pressure Officer Zhang was putting on the back of his head. Officer Zhang's partner, Officer Valitutto, watched and did nothing to intervene as Officer Zhang brutalized and falsely arrested Mr. Gan.

15. As Officer Zhang brutalized Mr. Gan, a crowd began to gather. Individuals began to show concern about the way Officer Zhang was treating Mr. Gan. An elderly woman screamed to Officers Zhang and Valitutto, "What you are doing to that boy is wrong. He didn't do anything." Officer Zhang told Officer Valitutto to "get rid" of the woman, so Officer Valitutto yelled at her to leave and said, "Who do you think you are, f**king Bloomberg? We'll arrest you too." Mr. Gan asked his roommate to get the woman's contact information, but as his roommate approached the woman, Officer Valitutto prevented him from reaching her.

16. A young man with a video camera was also in the crowd. Officer Zhang saw him and was nervous that he might be filming, so he told Officer Valitutto to "get rid" of him as well. Officer Valitutto got the man to move a few feet away, but the man did not leave. In fact, this man witnessed the rest of the interaction and corroborates Mr. Gan's account of it.

17. In apparent retaliation for the crowd gathering and showing concern for Mr. Gan, Officer Zhang emptied the contents of Mr. Gan's wallet to the ground. As he did this, Officer Zhang said, "What do you think of that a**hole? Look what you made happen. Now everyone is crossing the tape. What you can't f**king read?" Officer Zhang went on to say "You think you can do whatever you want? Now you're really going to get it. We're gonna get some felonies on your record. You ever been to jail?"

18. A police car arrived, and Mr. Gan was escorted to it. As he passed the young man with the video camera, he told him his name and how to reach him via

Facebook. The young man later reached out to Mr. Gan and corroborated his account of the events.

19. Approximately eight hours later, Mr. Gan was transferred to Central Booking, where he was shuffled among various cells of 20-30 prisoners throughout the night. Mr. Gan remained in custody until his arraignment at about 11:00 a.m. on February 22, 2010. Mr. Gan was never read his Miranda rights.

20. On February 21, 2010, Officer Valitutto swore to a false misdemeanor complaint in Criminal Court, New York County, falsely and maliciously charging Mr. Gan with Assault in the Third Degree (PL120.00), Resisting Arrest (PL205.30), and Obstruction of Governmental Administration (PL195.05).

21. Officer Valitutto swore to these charges for purposes other than legitimate law enforcement, including, but not limited to, the harassment of Mr. Gan and an attempt to justify the unlawful police conduct of Officers Zhang and Valitutto.

22. Plaintiff filed a timely notice of claim.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983)

23. Plaintiff repeats and realleges the allegations contained in all of the preceding paragraphs as though fully set forth herein.

24. As a result of defendants' individual and collective acts, plaintiff was unlawfully detained and searched in violation of his civil rights under the Fourth and Fourteenth Amendments to the United States Constitution and in violation of his rights under the statutory and common laws of New York State and the New York State Constitution.

25. Defendants used excessive force in tackling Mr. Gan and in cuffing him and slamming his face against a wall.

26. Plaintiff suffered injuries due to defendants' deliberate indifference to plaintiff's rights under the United States Constitution, the statutory and common laws of New York State, and the New York State Constitution.

27. Plaintiff was injured by defendants because their acts were perpetrated based on custom, usage, patterns, and policies instituted by the municipal policymakers and resulting in violations of plaintiff's civil rights under the United States Constitution, the statutory and common laws of New York State, and the New York State Constitution.

28. Plaintiff was injured because defendants were deliberately indifferent in that they failed to adequately train, supervise, and/or discipline members of the police department, and said indifference resulted in violation of Plaintiff's rights under the United States Constitution, the statutory and common laws of New York State, and the New York State Constitution.

29. Plaintiff was injured because the defendants failed to intervene to stop the illegal acts perpetrated against plaintiff and conspired against plaintiff, and, as a result, violated plaintiff's rights under the United States Constitution, the statutory and common laws of New York State, and the New York State Constitution.

30. As a result of defendants' actions and/or inaction, plaintiff Wei Gan suffered physical, mental, and emotional trauma, and damage to his reputation. Plaintiff also lost enjoyment of life and was deprived of his movement, civil rights, and overall personal liberty in violation of the United States Constitution, the New York State Constitution, and New York State statutory and common laws.

31. As a result of the foregoing, plaintiff has been damaged and seeks compensatory damages, along with any punitive damages, costs, and attorneys' fees as may be deemed proper by a jury.

SECOND CAUSE OF ACTION

(False Imprisonment)

32. Plaintiff repeats and realleges the allegations contained in all of the preceding paragraphs as though fully set forth herein.

33. As a result of defendants' individual and collective acts, plaintiff was subjected to unlawful imprisonment in violation of his rights under the laws of the State of New York.

34. As a result of defendants' actions and/or inaction, plaintiff suffered severe mental and emotional trauma, and damage to his reputation. Plaintiff also lost enjoyment of life and was deprived of his movement, civil rights, and overall personal liberty in violation of the United States Constitution, the New York State Constitution, and New York State statutory and common laws.

35. As a result of the foregoing, plaintiff has been damaged and seeks compensatory damages, along with any punitive damages, costs, and fees as may be deemed proper by a jury.

THIRD CAUSE OF ACTION

(Negligence)

36. Plaintiff repeats and realleges the allegations contained in all of the preceding paragraphs as though fully set forth herein.

37. Defendants owed plaintiff a duty of reasonable care. Defendants breached that duty as described herein. Defendants' breach was the legal and proximate cause of harm to plaintiff, discussed herein.

38. Defendants' individual and collective acts constituted negligent training and/or supervision and resulted in violation of plaintiff's rights under the laws of the State of New York.

39. Defendants are liable under the theory of respondeat superior and are thus responsible for the violations of plaintiff's rights under the laws of the State of New York and the United States.

40. As a result of defendants' intentional and/or severely reckless misconduct, plaintiff suffered physical, mental, and emotional trauma, and damage to his reputation. Plaintiff also lost enjoyment of life and was deprived of his movement, civil rights, and overall personal liberty in violation of the United States Constitution, the New York State Constitution, and New York State statutory and common laws.

41. As a result of the foregoing, plaintiff has been damaged and seeks compensatory damages, along with any punitive damages because defendants' actions were intentional, reckless, grossly negligent and/or willful and wanton, costs, and fees, as may be deemed proper by a jury and the Court.

FOURTH & FIFTH CAUSES OF ACTION

(Intentional & Negligent Infliction of Emotional Distress)

42. Plaintiff repeats and realleges the allegations contained in all of the preceding paragraphs as though fully set forth herein.

43. As a result of defendants' individual and collective acts, discussed herein, plaintiff was subjected to intentional and negligent infliction of emotional distress in violation of the laws of the State of New York.

44. As a result of defendants' actions and/or inaction, plaintiff suffered mental and emotional trauma, and damage to his reputation. Plaintiff also lost enjoyment of life and was deprived of his movement, civil rights, and overall personal liberty in violation of the United States Constitution, the New York State Constitution, and New York State statutory and common laws.

45. As a result of the foregoing, plaintiff has been damaged and seek compensatory damages, along with any punitive damages, costs and fees, as may be deemed proper by a jury and the Court.

SIXTH & SEVENTH CAUSES OF ACTION

(Assault & Battery)

46. Plaintiff repeats and realleges the allegations contained in all of the preceding paragraphs as though fully set forth herein.

47. As a result of defendants' individual and collective acts, plaintiff Mr. Gan was subjected to assault and battery in violation of his rights under the laws of the State of New York when he was repeatedly subjected to excessive force and threatened by the Officer defendants.

48. As a result of defendants' actions and/or inaction, Ms. Gan suffered physical injuries, mental and emotional trauma, and damage to his reputation. Mr. Gan also lost enjoyment of life and was deprived of his movement, civil rights, and overall personal liberty in violation of the United States Constitution, the New York State Constitution, and New York State statutory and common laws.

49. As a result of the foregoing, plaintiff Mr. Gan has been damaged and seeks compensatory damages, along with any punitive damages, costs, and fees as may be deemed proper by a jury.

WHEREFORE, Plaintiff demands judgment against the defendants individually and collectively for the following:

- a) Compensatory damages to be determined by a jury for physical injuries, pain and suffering, mental anguish, humiliation, deprivation of liberty, embarrassment and degradation resulting from defendants' conduct;
- b) Punitive damages to be determined by a jury for defendants' intentional, reckless, outrageous and illegal conduct;
- c) Reasonable attorneys' fees and costs;
- d) Injunctive and declaratory relief; and
- e) Such other and further relief as the Court may deem just and proper.

JURY DEMAND

Plaintiffs respectfully demands a trial by jury for all issues pursuant to Fed. R. Civ. P. 38(b).

Dated: New York, NY
July 26, 2010

LAW OFFICE OF JOHN M. LAMBROS

By: 

John M. Lambros (JL1265)
40 Wall Street, 28th Floor
New York, NY 10005
Telephone: (212) 430-6474
Facsimile: (212) 208-2933
John@Lambroslawfirm.com